

Amendment No. 2 to HB1796

Crawford
Signature of Sponsor

AMEND Senate Bill No. 1849*

House Bill No. 1796

by deleting all language after the caption and substituting:

WHEREAS, Chapter 498 of the Public Acts of 2019 was enacted by the General Assembly and subsequently amended by Chapter 1006 of the Public Acts of 2024 by the Tennessee General Assembly and was designated as the Regional Retail Tourism Development District Act. The legislative purpose and basis of the act is to permit the creation of an additional retail district incentivized with sales tax revenues in the upper East Tennessee area, which is a tourism gateway, to complement the existing border region retail tourism development districts that have already been certified for such area, which additional retail tourism development district would be located in the other most populated county in such area; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 7-41-103, is amended by deleting subdivision (11) and substituting:

(11) "Regional retail tourism development district" or "district" means one (1) or more parcels of real property located within a county:

(A) Having a population of not less than one hundred thousand (100,000), according to the 2010 federal census or any subsequent federal census; and

(B) Which borders a county that has two (2) border region retail tourism development districts certified pursuant to title 7, chapter 40, and for which some boundary of the district, as defined in this subdivision (11), is no more than one-

half (1/2) mile from an existing federally designated interstate exit, is no more than twenty (20) miles from the state border of two (2) neighboring states as measured by a straight line, is no larger than a total area of nine hundred fifty (950) acres, and is designated as a regional retail tourism development district by a municipal ordinance and certified by the commissioner.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.